



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 12255 of 2026

Kumar Ajay Singh

.....Petitioner(s)

Versus

The State Of U.P. And 10 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Kumar Abhay Singh, Kumar Vinay Singh
Counsel for Respondent(s)	: C.S.C., Udit Chandra

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. Mr. Praval Tripathi, learned advocate appears on behalf of private respondent nos. 9 to 11 and files affidavit of date on copy served to Mr. Kumar Vinay Singh, learned advocate appearing for petitioner. He submits, there is dispute in respect of the land, over which petitioner wants the transmission line to be drawn, for purpose of obtaining electric connection. He relies on clause 4.5 (d) in Uttar Pradesh Electricity Supply Code, 2005. The provision is reproduced below.

"4.5 Inspection by Licensee

.....(d) Determine if the supply line shall go over any property belonging to a third party. In such a case the applicant shall obtain no objection from the third party, in absence of which, the licensee may adopt a different route for which the applicant shall bear the cost differential."

(emphasis supplied)

Mr. Sharad Chandra Upadhyay, learned advocate, Standing Counsel appears on behalf of State and Mr. Nitesh Patel, learned advocate holding the brief, for respondent nos. 2, 6 and 7 (the supply company).

2. Private respondents contend that where there is objection by a third party, connection must be obtained from different route for which applicant shall bear the cost differential. Mr. Singh submits, private respondents are encroachers. The land belongs to the Gram Sabha.

Litigation in respect of purported dispute is carrying on for past 28 years. There be direction because his client will not be able to run the pump on alternative domestic supply.

3. On query Mr. Tripathi submits, his client preferred appeal. The title dispute has been remanded to respondent no.5 (Tehsildar). The authority is in seisen of the controversy regarding ownership of the land. In the circumstances, the supply company must approach said respondent for obtaining 'no objection'. The supply company is to accordingly apply to respondent no.5 and for the purpose, may enclose website copy of this order. The application be dealt with in the time of adjournment granted.

4. Respondent no.5 will file affidavit enclosing the decision taken. It will be accepted on adjourned date, upon advance copy served. For the purpose of taking decision, said respondent may notice private respondents and the Gram Sabha. The supply company also to work out alternative route and differential in cost and provide the same by way of affidavit, also to be accepted on adjourned date, upon advance copy served.

5. List on 6th July, 2026 as fresh.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

May 26, 2026

Mohini